



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 12, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202001702 regarding Detective Thomas Lyons, Tax No. 946517 (DADS No. 2022-24921)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action will be taken against Detective Lyons. In this matter, Detective Lyons immediately intervened in an assault being committed in his presence against a minor female by a 14-year-old male individual. Detective Lyons took the individual to the ground and arrested him.

The CCRB found that the takedown was excessive and that a Schedule "B" Command Discipline was an appropriate penalty. The CCRB investigator determined that although the intervention by Detective Lyons was within four seconds of the beginning of the assault on the minor female, the male individual had stopped throwing punches which rendered the forcible takedown unnecessary.

In his statements to the CCRB, Detective Lyons described his actions as controlled and carried out in an effort to prevent the male individual from throwing further punches. Given the mere seconds that had passed between the beginning of the assault and Detective Lyons's swift intervention, it was reasonable for Detective Lyons to believe that the male was actively continuing his assault when he was taken down. In fact, Detective Lyons actions stopped the assault without causing any injury to the male individual.

COURTESY • PROFESSIONALISM • RESPECT

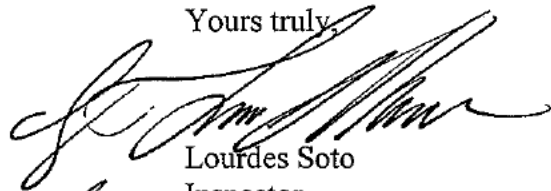
Website: <http://nyc.gov/nypd>

After a careful review of all the relevant evidence, including all video evidence, the Police Commissioner found that the force used by Detective Lyons was reasonable given the circumstances, including the presence of a large crowd and the immediacy of the apparent threat against the minor female.

Therefore, based on the foregoing, the Police Commissioner has determined that Detective Lyons receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-02 (Use of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', written in a cursive style.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office

A handwritten signature in black ink, appearing to read 'J. [unclear]', written in a cursive style.